

5	Pacific Coast Builders, Inc. vs. Tuck 2024-01420133	Motion for Attorney Fees Defendants’ counsel filed a Notice of Automatic Stay on 4/3/26 which states the case is stayed “with regard to all parties” due to Chapter 11 bankruptcy proceedings by Defendant/Cross-Complainant David Tuck. Moreover, Cross-Complainants’ reply filed on 5/11/26 states the case is stayed. However, a bankruptcy stay generally applies only to actions against the debtor. (<i>In re Bidermann Industries U.S.A., Inc.</i> (Bankr. S.D.N.Y. 1996) 200 B.R. 779, 782; <i>Higgins v. Superior Court</i> (2017) 15 Cal.App.5th 973, 975 [“As a matter of law, the automatic stay that applied to claims against debtor Powell did not apply to Cabandong's claims against nondebtor Higgins”].) Tentative Ruling: Cross-Complainants’ Motion for Attorney Fees is CONTINUED to 6/15/26. The parties shall each file a supplemental brief, not to exceed seven pages, no later than 6/1/26, addressing the following issues: 1). Does the bankruptcy stay apply to Plaintiff’s action against Defendant Heather Tuck? 2). Does the stay apply to the Tucks’ Cross-Complaint?
6	Tsirtsis vs. Pacific Hospital Long Beach 2024-01427440	Motion to Be Relieved as Counsel of Record Moving attorney states withdrawal is necessary under Rules of Professional Conduct 1.16(b)(4)-(5), which provide for terminating representation on the following grounds: “(4) the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively; (5) the client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable* warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation;” Tentative Ruling: The motion of attorney Lawrence Hoodack to withdraw as attorney of record for Plaintiff James Dimitri Tsirtsis is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.